

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1449

By: Humphrey

AS INTRODUCED

An Act relating to public health and safety; creating the Vaccine Mandate Prohibition Act; prohibiting certain vaccination mandates by covered entities; prohibiting certain actions by covered entities; exempting covered entities from liability in certain civil actions; providing for codification; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-502.5 of Title 63, unless there is created a duplication in numbering, reads as follows:

A. This act shall be known and may be cited as the Vaccine Mandate Prohibition Act.

B. As used in this section, "covered entity" means:

1. A state agency;
2. A political subdivision;
3. Any entity that accepts funds from the state, the federal government, or a political subdivision from whatever source derived;

1 4. Any entity that employs individuals who are required by the
2 state or a political subdivision to have licensure or certification
3 issued by a state agency;

4 5. Any hospital licensed by the State Department of Health; or

5 6. Any private entity.

6 C. A covered entity or agent of a covered entity shall not
7 require the receipt of any vaccine used to prevent infection by any
8 current or future variant of SARS-CoV-2 or the development of
9 Coronavirus disease (COVID-19) for any reason including, but not
10 limited to, as a condition of employment, professional licensure,
11 educational admittance, certification or degree, admittance to any
12 place of business or entertainment, or access to any mode of
13 transportation.

14 D. A covered entity or agent of a covered entity shall not
15 discriminate against, punish, demote, or isolate any employee of the
16 covered entity based on whether the employee has received a vaccine
17 used to prevent infection by any current or future variant of SARS-
18 CoV-2 or the development of COVID-19.

19 E. A covered entity or agent of a covered entity shall not be
20 liable in a civil action claiming an injury from exposure or
21 potential exposure to any current or future variant of SARS-CoV-2 or
22 from the development of COVID-19 if the act or omission alleged to
23 violate a duty of care of the covered entity or agent of the covered
24 entity was in compliance with this section.

1 SECTION 2. It being immediately necessary for the preservation
2 of the public peace, health or safety, an emergency is hereby
3 declared to exist, by reason whereof this act shall take effect and
4 be in full force from and after its passage and approval.

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